



Private and Confidential

“MODUS SUPER SERIES” Player Contract

MODUS Online Ltd
4 Office village
Forder Way
Cygnet Park
Hampton
Peterborough
Cambridgeshire

15th June 2026

Dear **Sander van Ockenburg-Zwaan**

THIS AGREEMENT IS LEGALLY BINDING: YOU SHOULD CONSIDER TAKING INDEPENDENT LEGAL ADVICE BEFORE SIGNING.

This Agreement is made between: -

(1) **MODUS ONLINE LIMITED**, a company registered in England (number 13062109) of 4 Office Village Forder Way, Hampton, Peterborough, England, PE7 8GX (“**MOL**”)

and

(2) (“**the Player**”)

These terms and the Schedule referred to below and attached together form the contract between MOL and the Player governing the Player’s participation in the series of prize-money professional darts competitions called the MODUS Super Series (formerly known as the “*MODUS Online Live League*”).

1 Interpretation

For the purposes of this Agreement the words, acronyms, references, and phrases set out in the table below shall have the meanings provided for them.

ADRV	Anti-Doping Rule Violation as defined in the World Anti-Doping Code 2021 and enforced by the UKDA
Commencement Date	The date when both parties have signed this Agreement
Doping	The taking of medication or undergoing a medical procedure or other health treatment prohibited under the World Anti-Doping Agency’s Prohibited List without holding a valid Therapeutic Use Exemption certificate: see also Schedule E attached to this Agreement
DRA	Darts Regulatory Authority
FEU Tax	The taxation scheme operated by the <i>Foreign Entertainers Unit</i> of HMRC by which a non-resident sportsperson is liable to pay tax at the basic rate to the UK on prize-money won directly or indirectly

from engagement in a sporting competition, collected directly from the Promoter who pays the prize money but which may be reclaimed by the sportsperson from HMRC if eligible for a certificate issued by the FEU

<i>Force Majeure</i>	Circumstances beyond a party's reasonable control which cause that party to fail to perform its obligations under this Agreement (whether wholly or in part), circumstances that include but are not restricted to: War, acts of Terrorism (whether threatened or executed), Epidemic and disease, Strike action or Lock-out, civil warfare or strife, Flood or fire damage, acts of God, legal or regulatory enactment, government order, and international sanction preventing or affecting adversely the holding of the Tournament.
HMRC	His Majesty's Revenue and Customs
IPR	Intellectual Property Rights: collectively copyright and related rights (e.g. moral and performers rights), commercial rights in the owner's likeness or digital image, name and/or performance name, rights in confidential information, know-how, trade secrets, trademarks, trade names, database rights, databases, domain names, business names and all similar rights of whatever nature wherever in the world arising
<i>Promotional Material</i>	Promotional advertising and marketing materials in any format and published by any medium or method of distribution or display
Tournament	MODUS Super Series TM
TUE	Therapeutic Use Exemption: see also Schedule E attached to this Agreement
UK	United Kingdom of Great Britain and Northern Ireland
UKDA	UK Anti-Doping: the national body responsible for supervising compliance with the World Anti-Doping Code 2021 through implementation and management of the UK's National Anti-Doping Policy
Venue	<i>MODUS Live Lounge</i> , 19 London Road, North End, Portsmouth, Hampshire PO2 0BQ

2 Player as competitor

- 2.1 The Player will compete in this Tournament in his/her capacity as a self-employed professional darts player. Save as expressly provided otherwise, nothing contained in this Agreement shall in any way create any formal association, partnership, joint venture or the relationship of Principal and Agent or Employer and Employee between the Parties, nor be construed as evidencing the intention of the parties to create any such relationship.
- 2.2 The format for the Tournament will consist of a series of thirteen-week-long league match play competitions, each leading to a Final featuring the top players of each league. The Tournament's rules and format are set out with greater detail under Schedule A attached to this Agreement.
- 2.3 Each session of play shall be live-streamed over the Internet. In addition, should agreement be reached between MOL and a suitable television production company, the Tournament may be scheduled for broadcast by terrestrial or satellite transmission.

3 Term of Agreement and Schedules

- 3.1 This Agreement shall commence on the Commencement Date and continue until terminated in accordance with clauses 7, 8 or 10 below, or if this Agreement is substituted in its entirety by the parties signing a new Agreement.
- 3.2 For the duration of this Agreement MOL shall exercise its own discretion whether to add to, remove from or amend any of the following elements of the Tournament: -
 - 3.2.1 The number of matches played in a session and the size of each league group, set out under Schedule A ("Tournament Format");
 - 3.2.2 The number, categories, and cash amount of prizes to be won during the Tournament, set out under Schedule B ("Tournament Prizes");
 - 3.2.3 Dress code of competitors, to include the format, number, size, and location of any sponsor logo patch on the shirt to be worn by the Player during the Tournament, set out under Schedule C ("Player's Briefing");
 - 3.2.4 Whether any guest of the Player may be granted admission to the Venue, including the total number of permitted guests attending any session of the Tournament;
 - 3.2.5 The contents of Schedule D relating to Betting and Gambling;
 - 3.2.6 The contents of Schedule E regarding Anti-Doping and TUE certification.
- 3.3 Any material changes to the Tournament Format, Prizes, Player's Briefing, DRA and Anti-Doping rules shall be put into writing and delivered to the Player in the form of a revised Schedule bearing the date of amendment; whereupon the new Schedule shall take effect from the date of delivery and any prior Schedule shall have no further effect.

4 MOL's Obligations

- 4.1 MOL will take care to ensure that the Venue is a reasonably safe and secure environment for the Player and any permitted guest of the Player.
- 4.2 If the Player wins one or more of the prizes set out under Schedule B to this Agreement, within seventeen (17) days following the end of the playing week MOL shall pay the prize sum by BACS transfer into a bank account previously nominated by the Player.
- 4.3 In the case of a prize-winning Player who is not a resident of the UK, within seventeen (17) days following the end of the playing week MOL shall: -
 - 4.3.1 Pay by BACS transfer into a bank account nominated by the Player the net sum of the prize money less the following deductions: -
 - (a) the sum of FEU tax payable directly by MOL to HMRC; and
 - (b) the cost of the BACS transfer (currently £15 but subject to change).
 - 4.3.2 Supply to the Player an appropriate FEU certificate for the Player's tax purposes.
- 4.4 MOL shall retain the right to exclude a Player from the Tournament summarily and without prior written notice or having to provide a written explanation at or immediately after the material time of communicating the exclusion. The Player may ask MOL to provide a written explanation of the reason for exclusion and MOL shall comply within seven working days following receipt of the Player's request.
- 4.5 MOL undertakes not to exclude the Player from competition as the result of irrational decision-making or bias; nor in the absence of reasonable grounds which are persuasive on the balance of probabilities. Such grounds may include but are not limited to the opinion of MOL's management or the Players Marshal that the Player's words conduct or behaviour constitute one or more breaches of clause 5 below.

5 Player Obligations

- 5.1 The Player hereby warrants to MOL that: -
- (a) The Player has legal capacity to enter into this Agreement and is not prohibited or restricted in doing so; and
 - (b) At the time of signing this document there are no other contracts binding the Player – and whether agreed orally in principle or in escrow – which would or might prejudice, override or conflict directly or indirectly with the provisions of this Agreement.
- 5.2 The Player promises to be available on the dates of the Tournament and any prior training required by MOL.
- 5.3 The Player shall not participate in or accept an invitation to compete in any other live-streamed darts tournament or match for the duration of this Agreement **PROVIDED THAT** the Player may in writing seek the permission of MOL to do so whilst continuing to participate in the Tournament; the consent of MOL not to be unreasonably withheld. The Parties are agreed that any live-streamed darts match or tournament run by a competitor of MOL is likely to give rise to a conflict of commercial interests and that MOL's decision on the Player's request shall be final.
- 5.4 The Player shall be ready, willing and available to participate as reasonably requested by MOL for media interview, public relations exercise, promotional portrait or video and/or league endorsement (together these activities are referred to below for convenience as an "Appearance"). Save as described, the Player shall not, without the prior permission of MOL: -
- (a) Post to any social media or submit to interview or make any other public statement relating to the Tournament;
 - (b) Comment share or disclose any information concerning the Player's own matches or session, the matches of other players within one or more Groups, or the performance of any other player within the Tournament overall.
- 5.5 The Player's IPR remains vested in the Player notwithstanding this Agreement. In consideration for participating in the Tournament the Player grants to MOL an unlimited and royalty-free licence to use the Player's IPR for the purpose of Promotional Materials and the streaming/broadcasting of the Tournament both live and in edited recordings.
- 5.6 The Player agrees that any IPR that comes into existence as a result of or in course an Appearance at or in connection with the Tournament (including but not limited to Promotional Materials, match footage, interviews and other authorised recordings) shall vest in and belong to MOL absolutely.
- 5.7 The Player agrees that both the specific address and general location of the Venue is a trade secret forming part of MOL's IPR and constitutes information confidential to MOL which the Player promises not to publish by any method (including but not limited to Social Media post) without the written permission of MOL for a period of five calendar years starting with the Commencement Date or ending five calendar years after the termination of any extension or substitution of this Agreement, whichever is the later.
- 5.8 Neither the Player nor any person acting at the Player's direction shall take any photographs or record any video footage at the Venue.
- 5.9 The Player will be responsible for the following personal arrangements and expenses: -
- (a) Travel to and from the Venue and any relevant parking charge;
 - (b) Food, drink and any other subsistence required by the Player.

- 5.10 Both at the Venue and at any Appearance reasonably requested by MOL the Player shall wear clothing that complies with the Dress Code, including a darts shirt displaying logo patches in the positions directed in the Players Briefing at Schedule C of this Agreement.
- 5.11 The Player will compete and perform during the Tournament to the best of the Player's ability including reasonable cooperation during any Attendance reasonably requested by MOL.
- 5.12 At all times for the duration of this Agreement the Player shall: -
- (a) Abide by the Tournament format under Schedule A and the Players Briefing under Schedule C of this Agreement;
 - (b) Obey and comply with the DRA rules including but not limited to the rules against match-fixing betting and corrupt practices (a summary of which is set out under Schedule D of this Agreement);
 - (c) Not bet or gamble on the result of any Tournament match (including any match in which the Player is competing) nor encourage advise or instruct any other person to do so whether for the proposed benefit of the Player or of any other person;
 - (d) Not compete whilst Doping or otherwise being guilty of an ADRV;
 - (e) Not use any words or engage in any conduct which brings the Player, any other player in the Tournament, the game of darts, the Tournament itself or MOL into disrepute; and
 - (f) If the Player is a witness to or made aware of any other player's breach of paragraphs (a) to (e) inclusive of this clause 5.10 thereafter fails to report the same to the Player's Marshal as soon as reasonably practicable (staying silent despite such knowledge being itself a breach of the DRA Rules).
- 5.13 In furtherance of the Player's obligation under clause 5.10(c) above, upon request in writing from MOL the Player will provide information regarding any personal betting accounts held or operated by the Player and whether in the Player's own name or under alias, so that MODUS may monitor those accounts against the risk of suspicious betting activity.
- 5.14 The Player will be liable to summary exclusion from the Tournament on the following grounds: -
- (a) If the DRA announces that the Player is under investigation or has been declared in breach of the DRA regulations against Match-Fixing, Betting and other corrupt practices (a summary of which is set out under Schedule D of this Agreement);
 - (b) If MOL has reasonable grounds for suspecting that the Player has previously or is currently engaged in misconduct falling within the ambit of Schedule D irrespective of whether the DRA is aware of such allegation;
 - (c) If MOL has reasonable grounds for suspecting that the Player has previously committed or is currently committing an ADRV or otherwise engaged in Doping without a recognised TUE certificate (a summary of those rules is set out under Schedule E of this Agreement), this whether or not the UKDA is aware of any such allegation;
 - (d) If the Player has received a request for information under clause 5.10(c) below and either ignores the request or, notwithstanding the existence of betting accounts held by or under the control of the Player at the material time, fails or refuses to provide that information;
 - (e) If the Player witnesses or becomes aware that a fellow player has engaged in acts liable to summary exclusion under paragraphs (a) to (d) inclusive of this clause

5.12 and then either fails or refuses to report that knowledge to the Players Marshal as soon as reasonably practicable thereafter.

6 Therapeutic Use Exemption

- 6.1 If the Player should suffer from an illness or condition that requires the taking of medication or undergoing a procedure which prohibited by the UKDA, a TUE certificate may authorise the Player to use that substance or undergo that procedure whilst competing in the Tournament without invoking an ADRV and appropriate sanction, including a material breach of this Agreement.
- 6.2 A TUE certificate is an official medical document giving the Player permission to take the defined medication or undergo the specified procedure whilst competing in the Tournament without registering a Doping offence.
- 6.3 At all material times during this Agreement it shall be the Player's personal responsibility to decide whether a TUE certificate is required and if so to take the steps necessary to obtain one. A summary of the UKDA principles for the grant of a TUE certificate are set out in Schedule E to this Agreement.
- 6.4 It shall not be a defence to a breach of clause 5.12(e) or 5.14(c) of this Agreement for the Player to allege that a TUE certificate would have been granted had it been applied for in time to compete in the Tournament.

7 Player's Sponsor Logos

- 7.1 If the Player wishes to display on the Player's darts shirt a sponsor's logo patch visible during participation in the Tournament (as to which see Schedule C to this Agreement), the Player shall first seek the written consent of MOL and at the same time supply a spare patch or scan copy of the sponsor's logo for inspection.
- 7.2 MOL's consent to a Player's request under clause 7.1 shall not be unreasonably withheld **PROVIDED THAT** the display of such logo patch does not conflict with any sponsorship contract then or subsequently entered into by or benefitting MOL; and the question whether such a conflict arises shall be a matter entirely for the decision of MOL.

8 Termination by Breach

- 8.1 One party may terminate this Agreement immediately if the other party: -
 - (a) commits a breach of this Agreement that is not remedied (if capable of being remedied) within seven (7) days of written notice being received from the party alleging the breach;
 - (b) is declared insolvent, enters into any company Voluntary Arrangement or other composition with its creditors, has a Receiver appointed or an Administration Order made in respect of it or is unable to pay its debts within the meaning of section 123 of the Insolvency Act 1986;
 - (c) ceases or threatens to cease carrying on business.
- 8.2 Termination under this clause shall not affect restrict or prejudice any rights which have accrued to the parties by the date of termination, nor any provision of this Agreement expressly stated as surviving or implicitly surviving termination.

9 No-Fault Termination

- 9.1 Giving not less than five days' notice in advance, either party ("the Cancelling Party") may deliver a written notice ("Cancellation Notice") to the other party cancelling this Agreement without having to rely on a breach of contract by the other party.
- 9.2 If the Cancellation Notice period is going to expire on a day when the Player is continuing to compete in the Tournament then for the convenience of the Parties the

notice period shall be deemed not to expire until the calendar day following the elimination of the Player from the Tournament in accordance with the format described under Schedule A of this Agreement.

- 9.3 The effect upon this Agreement of the service of a Cancellation Notice is that the Cancelling Party is relieved of further performance of any services and obligations, save that cancellation shall not affect restrict or prejudice any rights which have accrued to the parties by the date of termination, nor any provision of this Agreement expressly stated as surviving or implicitly surviving termination.

10 Data Protection and Disclosure

- 10.1 The Player consents to MOL receiving and holding the Player's personal data as Data Controller. There shall be no disclosure by MOL of the Player's personal confidential information – for example and without limitation: the Player's bank account, location of the Player's home address, number names and age of children, name of spouse/partner – unless the Player has given prior written consent with knowledge of the party to whom such disclosure is proposed.
- 10.2 The Player consents to MOL sharing darts performance and linked data with third parties directly associated with MOL for the purpose of preparing and publishing performance statistics required for the league format, live streaming channel, and the calculation of betting odds by licensed Gaming and Betting bookkeepers.

11 Force Majeure

- 11.1 A party affected by Force Majeure ("the Affected Party") shall not be held liable or deemed to be in breach of this Agreement for failure to perform its obligations if such failure results directly or indirectly from circumstances of Force Majeure and thereby is deemed beyond the Affected Party's reasonable control.
- 11.2 Subject to clause 9 above, the Affected Party must continue to perform those of its obligations to the extent that they are unaffected by Force Majeure and must use all reasonable endeavours to overcome or mitigate the consequences of Force Majeure as soon as may be reasonably possible.
- 11.3 The Affected Party shall deliver a Cancellation Notice to the other party as soon as reasonably practicable specifying the relevant circumstances of Force Majeure, whereupon clause 9.2 applies.
- 11.4 A party who rejects the Affected Party's reliance on Force Majeure in the Cancellation Notice shall respond with a notice in writing that the Affected Party is in breach of this Agreement and a dispute has arisen; whereupon clause 15 below shall apply.

12 General

- 12.1 No failure or delay by a party to exercise any right or remedy provided under this Agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.
- 12.2 A waiver of a term or condition of this Agreement by either party shall be declared in writing and delivered to the other party, and in any instance shall neither be construed as a waiver of such term or condition in the future nor as the waiver of any subsequent breach of the same. For the avoidance of doubt, the silence of the innocent party following breach of a term or condition of this Agreement by the offending party shall be construed as Forbearance and not waiver of the breach until this clause 12.2 applies.

- 12.3 This Agreement contains all of the terms and conditions agreed between the Parties regarding its subject matter and supersedes any prior agreement, arrangement or understanding between them.
- 12.4 If any clause or subclause of this Agreement is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant clause or subclause shall be deemed deleted. Any modification to or deletion of a clause or subclause by the operation of this clause 12.4 shall not affect the validity and enforceability of the rest of this Agreement.
- 12.5 This Agreement may be executed in any number of counterparts and by each party on separate counterparts. Each executed counterpart is to be treated as an original, but all counterparts together shall constitute one and the same Agreement.
- 12.6 No variation of this Agreement shall be effective unless it is in writing and signed by a proper officer of each party.
- 12.7 Any notice required or authorised by this Agreement shall be in writing and sent to the other party by email or by registered post to the relevant email or postal address as advised from time to time by each party to the other.

13 Confidentiality

- 13.1 Each party shall ensure that the terms of this Agreement and all matters relating to the format, rules and prizemoney of the Tournament remain strictly confidential both during the Tournament and for the period defined under clause 5.7 of this Agreement, unless permission in writing to disclose the specified information is given by MOL to the Player.
- 13.2 Neither party shall make or release any statement, announcement or representation to any member of the public, the Press or Media regarding the one party's involvement with the other (including any reference to this Agreement) unless such statement, announcement or representation has first been approved in writing by the other party.

14 Governing Law and Jurisdiction

This Agreement shall be governed by the laws of England and Wales; and the Parties shall submit exclusively to the jurisdiction of the Courts of England.

15 Dispute Resolution

- 15.1 In the Event Day of breach of any term or condition of this Agreement, the innocent party shall inform the offending party of the breach by notice in writing.
- 15.2 If the breach is capable of remedy, within 7 days of receipt of the notice of breach a representative from both parties shall meet either in person or by virtual meeting-space and use their best endeavours to agree upon the appropriate remedy for that breach.
- 15.3 If the breach is incapable of remedy, or if only one party concludes that the breach is remediable, either party shall notify the other party in writing that the dispute has not been resolved and may apply to the President or Deputy President of the Chartered Institute of Arbitrators to appoint a Mediator under the Civil Mediation Council (CMC) Fixed Fee Mediation Scheme [FFMS].
- 15.4 Mediation is an alternative to formal legal proceedings capable of providing a confidential, flexible and cost-effective method of resolving the dispute. The courts of England have strongly encouraged litigants to mediate their dispute without the need for a possibly lengthy and expensive trial of the facts. Should either party choose to reject Mediation altogether ("the Rejecting Party") and prefer to litigate the dispute in Court then the Rejecting Party will set out in writing the grounds for that decision so that the Court can understand the reasons for the Rejecting Party doing so.

16 Limitation of Liability

- 16.1 Subject to paragraph 16.2 below, neither party shall be liable to the other in Contract, Tort (including Negligence) or for breach of statutory duty or in any other way for any economic losses (including loss of revenue, profits, contracts, opportunity, business or anticipated savings) or loss of goodwill or reputation or any special or indirect or consequential losses in any case and whether or not such losses are within the contemplation of the parties at the date of this Agreement.
- 16.2 Nothing in this Agreement shall operate so as to limit the liability of one party to the other for Fraud, or for personal injury or for death caused by Negligence.

17 Right to Assign etc

MOL may at any time assign transfer novate or deal in any other manner with all or any of its rights under this Agreement.

Signed below by a proper officer of MOL and the Player: -

.....
Jason Thame
For and on behalf of MODUS Online Limited

.....
Sander van Ockenburg-Zwaan
Player